

		In the Civil Action, Petitioner is seeking to establish her fifty percent (50%) ownership of specified assets that were allegedly held in Decedent's name until Respondent interfered. In the instant Probate Action, Petitioner is seeking to establish that Decedent's estate has a fifty percent (50%) ownership in the same assets. Both actions involve the same real and personal properties, and both actions necessitate a determination that these assets belonged to Decedent (as opposed to his brother) and Petitioner. Thus, the court finds that the Civil Action concerns the same subject matter as the 850 Petition. Accordingly, the court must stay the 850 Petition (ROA 512) pursuant to Probate Code section 584. <u>Scope of Abatement of 850 Petition</u> The 850 Petition includes several additional causes of action that are not made pursuant to Section 850. Probate Code section 855 states, "An action brought under this party may include claims, causes of action, or matters that are normally raised in a civil action to the extent that the matters are related factually to the subject matter of a petition filed under this part." Thus, to the extent the additional causes of action in the 850 Petition (ROA 512) are related factually, such causes of action may also be stayed pursuant to Probate Code section 854. Counsel should be prepared to discuss whether all causes of action in the 850 Petition should be abated or only certain causes of action. Alternatively, counsel may request time to further brief such issue.
01421574	Pendleton - Trust	TENTATIVE RULING Case: Pendleton - Trust 01421574 Calendar No.: 2 Date: 07/15/2026 MOTION TO COMPEL FURTHER RESPONSE TO FORM INTERROGATORY 17.1 (ROA 49) Respondent Cynthia L. Russell ("Respondent") moves to compel Petitioner Jacquelyn Pendleton by and through her Power of Attorney Mary E. Mills, ("Petitioner") to further respond to Form Interrogatory 17.1 as it pertains to Requests

	for Admission Nos. 13 and 14 (collectively, the "Subject RFA"). Request for Admission No. 13 asks Petitioner to "Admit that YOUR PETITION is time-barred by the 1-year statute of limitations set forth in California Code of Civil Procedure section 366.2." Request for Admission No. 14 asks Petitioner to "Admit that the 1-year statute of limitations for bringing YOUR claim of unpaid spousal support is not subject to tolling based on California Code of Civil Procedure section 366.3." Petitioner responded to each of the Subject RFA with a denial. Form Interrogatory 17.1 states as follows: 17.1 Is your response to each request for admission served with these interrogatories an unqualified admission? If not, for each response that is not an unqualified admission: (a) state the number of the request; (b) state all facts upon which you base your response; (c) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and (d) identify all DOCUMENTS and other tangible things that support your response and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or thing. With respect to each of the Subject RFA, Petitioner responded to Form Interrogatory 17.1 in relevant party as follows: (b) All facts support the contention that the statute of limitations does not apply to this matter. (c) Mary Mills (d) See Order overruling demurrer on statute of limitations, dated July 2, 2025. In meeting and conferring, Respondent's counsel pointed out that said responses do not comply with Code of Civil Procedure section 2030.220(a), which requires responses to be as complete and straight forward as the information reasonably available to the responding party permits. Specifically,
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		Respondent's counsel asserted that Petitioner failed to state all facts that support Petitioner's contention that the statute of limitations does not apply. In response, Petitioner's counsel stated that it was sufficient to incorporate by reference the court's order overruling the demurrer on statute of limitations grounds. In overruling the demurrer, the court stated that "it is not clear from the face of the Petition whether the action to enforce the spousal support order is time-barred by section 366.2" (ROA 19.) The demurrer tests only the sufficiency of the petition, and the court's ruling the demurrer is limited to the four corners of the pleading. Thus, contrary to Petitioner's position, the court's ruling on the demurrer is not a finding as to whether a statute of limitations defense may ultimately be successful. Respondent may still claim a statute of limitations as an affirmative defense and may raise it at trial and/or in a motion for summary judgment. Thus, Respondent is still entitled to discovery regarding such issue. Petitioner must state all facts, and identify all witnesses and documents, that support her denial of the Subject RFA. Reference to the court's ruling on the demurrer is not sufficient. The motion to compel further response to Form Interrogatory 17.1 as it pertains to the Subject RFA is GRANTED. Petitioner shall serve a further response within 10 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing. "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2030.300(d).) The court finds no substantial justification for Petitioner's opposition to this motion. The court imposes reasonable attorney's fees and costs in the total amount of \$2,080.00 against Petitioner, payable within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing.
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		Counsel for Respondent is ordered to serve a notice of ruling and may elect to submit a proposed Order After Hearing.
01391605	Bonner - Probate	TENTATIVE RULING Case: Bonner - Probate 01391605 Calendar No.: 3 Date: 07/15/2026 MOTION TO BE RELIEVED AS COUNSEL (ROA 49) Attorney William K. Sweeney seeks to be relieved as counsel for Administrator Pal Lengyel-Leahu. The motion is GRANTED. This motion is continued from 3/11/26 for compliance with California Rules of Court, Rule 3.1362 and Orange County Local Rule 601.21. The court appreciates that counsel has served the citation. It not clear whether the client has returned the signed Notice and Acknowledgement of Receipt, which would complete the service. Nonetheless, compliance with Local Rule 601.21 is no longer required since the court appointed a new Administrator on 7/2/26. The court notes that counsel has served all three mandatory forms (i.e., MC-051, MC-052, and MC-053) required by California Rules of Court, Rule 3.1362. (ROA 76.) The court's records do not reflect that the Order was filed. Counsel shall file the Order Granting Attorney's Motion to Be Relieved – Civil (MC-053) for the court to sign and shall ensure that the client's current or last known address is stated therein. Withdrawal is effective upon proof of service of the signed Order Granting Attorney's Motion to Be Relieved – Civil (MC-053).